

custody arrangement].) These voluntary separations tend to weaken Plaintiff's claim that she now faces immediate and irreparable harm.

In addition, the Declaration of Hunter Capilla attaches and describes a series of Instagram posts made by Plaintiff during the months following Defendant's refusal to return the dog. These posts depict Plaintiff traveling, socializing, and participating in recreational activities without obvious limitation. (See 11/26/25 Capilla Decl. ¶¶ 1–5 and Exs. 1–8.) With no reply filed, this evidence remains unrefuted in the present record. The contrast between Plaintiff's assertions of daily debilitating symptoms and her documented activities on social media further undermines the claim that she faces immediate and irreparable harm absent exclusive interim possession of the dog.

Although Plaintiff submits evidence that separation from Maverick has had significant emotional and physical consequences for her, including symptoms she attributes to the loss of the dog's psychiatric-support functions, the evidentiary record remains mixed. Defendant has been Maverick's primary caretaker since this dispute arose, and he asserts his own emotional bond with the dog. On this record, the Court cannot conclude that the interim hardship to Plaintiff outweighs the hardship to Defendant in a manner sufficient to justify a change in possession before trial. In any event, without a showing of likely success on the merits, Plaintiff's motion must be denied regardless of how the harms balance.

IV. Conclusion

Based on the foregoing, the **Court denies the request for a preliminary injunction.**

12. 9:00 AM CASE NUMBER: C25-02371

CASE NAME: BETTY KARRIS VS. JILL CHERNE

***HEARING ON MOTION IN RE: ORDER GRANTING LEAVE TO CONDUCT INDEPENDENT MENTAL EXAM OF BETTY JEAN KARRIS**

FILED BY: KARRIS, BETTY JEAN

TENTATIVE RULING:

Two motions are before the court: (1) Plaintiff Betty Jean Karris (Betty Jean), through her Guardian ad Litem Harry Karris (Harry), moves for leave to conduct an Independent Mental Examination of Betty Jean; and (2) Plaintiff Betty Jean (represented by a different attorney and appearing without a guardian ad litem) moves to vacate the order appointing Harry Karris as guardian ad litem. Based on applications for orders shortening time, both matters were set before the Court on this date.

Betty Jean Karris, 91 years old, is the trustee of the Adrian and Betty J. Karris Trust. Defendant Jill Cherne (Jill) is her daughter. Harry Karris is her son. Betty Jean Karris transferred certain real property out of her trust to defendant Jill Cherne. Harry Karris contends that this transfer was without consideration and filed an action to recover the real property, as well as asserting other claims against Jill associated with other property. The action was filed on August 19, 2025, and Harry Karris was appointed as Betty Jean Karris' guardian ad litem on August 29, 2025.

On October 16, 2025, Betty Jean Karris appeared, through a different attorney, by way of a motion to

vacate the appointment of Harry Karris as guardian ad litem. In this pleading, she states that she does not need a guardian ad litem, that she had no knowledge of the suit or the application for appointment of Harry as guardian ad litem, and that once the appointment of a guardian ad litem is vacated, she will dismiss the case. In this pleading, she contends that the transfer in question is part of a set of transfers of eleven pieces of real property to Harry (4) and Jill (7) (one of which was sold to a third party), which actually gave more value to Harry. Harry opposes the motion and moves for leave to conduct an Independent Mental Examination of Betty Jean Karris.

Harry contends that Betty Jean's lack of capacity is apparent, and has been acknowledged by Jill. He also submits declarations of a nephew, two grandchildren, and an employee attesting to Betty Jean's memory issues. Counsel for Harry contacted counsel for Betty Jean and requested that she agree to attend a mental health examination at a specific date, time, and place, but received no response.

Under Code of Civil Procedure section 372, a court may appoint a guardian ad litem. "[T]he appointment of a guardian ad litem is subject to ongoing court supervision and the removal of a guardian ad litem, who functions partly as an officer of the court, is a matter within the court's control to be exercised as part of its inherent powers." (*Golin v. Allenby* (2020) 190 Cal.App.4th 616, 644.) The guardian ad litem must disclose any conflicts of interest and familial relationships with parties to the action. (§ 372(e).)

The application identified the proposed guardian ad litem as the son of Betty Jean Karris, and described her alleged cognitive decline. It did not identify any conflict of interest.

Under Code of Civil Procedure section 2032.310, a party seeking discovery by a mental examination shall obtain leave of court. The request for leave may be granted "only for good cause shown." (§ 2032.320(a).) Good cause exists where a party's mental state is in controversy. (*Vinson v. Superior Ct.* (1987) 43 Cal.3d 833, 839.)

As to the motion for leave to conduct a mental examination, substantial question has been raised about whether Betty Jean needs a guardian ad litem. Submission to a mental examination by a qualified expert is the best way to address the issue. The motion to compel a mental examination is granted, in part. Counsel for the parties are directed to meet and confer in order to agree on a time, date, place, and examining expert to conduct an examination pursuant pursuant to Code of Civil Procedure section 2032.020 and 2032.310. If they are not able to agree by January 5th, 2026, they shall each submit the issues on which they disagree for determination by the Court, through declarations of no longer than 3 pages filed with the Court. The objective of the mental health examination is to determine whether Betty Jean is a "person who lacks the capacity to make decisions" as defined Code of Civil Procedure section 372(a)(4)(A), (B). The cost of the examination shall be borne (at least initially) by Harry.

As to the motion to vacate the appointment of Harry as guardian ad litem, it remains to be seen whether a guardian ad litem is necessary, but it seems clear that Harry has a conflict of interest such that he should not serve in that capacity, due to his personal stake in the outcome of the litigation. Counsel are directed to submit to the Court either an agreed candidate for guardian ad litem, or their

own candidates (preferably two each) from which the Court will select. Either an agreement or a list of candidates shall be submitted to the Court no later than January 5th, 2026.

Because Harry is not a party to the case, he may consider whether to file a motion to intervene in this matter. In addition, the Court will consider whether to consolidate an apparently related matter, *Karris v. Cherne* (C25-01808), in which Harry has sued Jill for relief related to the same transactions and events, and Jill has cross-complained.

Pending the resolution of the issues identified above, Harry's authority as guardian ad litem shall continue only to carry out the acts necessary to comply with this order.

Betty Jean's counsel in the motion to vacate the appointment of the guardian ad litem requests \$4,800 in sanctions under Code of Civil Procedure section 128.7 for "bad faith or improper tactics[.]" Counsel have not, however, fulfilled the requirements of the "safe harbor" notice and separate filing requirement of section 128.7(c)(1). **Sanctions are denied.**

The motion to vacate appointment of guardian ad litem shall be continued to a date an appropriate date based on the date of the mental examination. **The Parties shall appear to discuss scheduling the matter.**

13. 9:00 AM CASE NUMBER: C25-02371
CASE NAME: BETTY KARRIS VS. JILL CHERNE
***HEARING ON MOTION IN RE: SETTING ASIDE ORDER APPOINTING GAL HARRY ATHAN KARRIS**
FILED BY: KARRIS, BETTY JEAN
TENTATIVE RULING:
See line 12.

14. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
HEARING IN RE: APPLICATION PRO HAC VICE AS TO BELINDA GRUNFELD FOR DEF
FILED BY: SYNGENTA AG,
TENTATIVE RULING:
Granted.

15. 9:00 AM CASE NUMBER: MSC19-01155
CASE NAME: JOANN BRADFORD VS. CHEVRON U.S.A. INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD OF DOCS**
FILED BY: BRADFORD, JOANN
TENTATIVE RULING:

Plaintiffs move to compel further production of documents and for monetary sanctions. This is a wage & hour class action, in which Chevron earlier had produced certain information concerning the employees in the certified class. At one point, it became known that there were another 134 class members for whom time records and payroll information had not been produced. After informal